

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: September 14, 2026 at 1:30 pm

Rulings Posted: 9/11/26 at 4:30pm

#	Case Name	Tentative
201	<i>Burke vs. City of San Clemente</i>	Before the Court is a motion to bifurcate liability and damages filed by Barbara Rojas, Deanna Frieze And Sunny Day Retail, Inc. (collectively, Rojas) and joined by the City of San Clemente (City). The motion is GRANTED, as set forth herein. The Court finds “the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation” would be promoted by bifurcating liability and damages. (Code Civ. Proc. §§598, 1008(b).) The liability phase of trial will proceed first and be immediately followed by the damages phase.

		Trial remains scheduled for September 21, 2026. The parties are reminded of the requirement to comply with Local Rule 317. City of San Clemente shall give notice.
202	<i>FERRA NTI vs. ZAVALA</i>	Before the Court is a motion by plaintiff Elizabeth Ferranti for an order setting aside the judgment entered December 16, 2025. Because there is no proof of service in the Court's file showing defendant Tony Zavala has been served with notice of this hearing, the hearing is CONTINUED to October 12, 2026 at 1:30 p.m. in Dept. C24 Plaintiff shall give notice.
203	<i>Romero vs. Crowned One Inc.</i>	Before the court is a motion for leave to file a second amended complaint (SAC) filed by plaintiff Jonathan Romero (Plaintiff). The unopposed motion is GRANTED. Plaintiff provided sufficient reason for not including the allegations in the SAC in prior versions of the complaint. The amended allegations appear to rest on the same general facts as the original complaint. (<i>Honig v. Fin. Corp. of Am.</i> (1992) 6 Cal. App. 4th 960, 966) Additionally, Plaintiff has substantively complied with the filing requirements under California Rules of Court, Rule 3.1324. As there are no objections to the amended complaint, the motion is granted. Plaintiff is ordered to file and serve the SAC attached as exhibit A to the motion by 9/21/26. Plaintiff shall give notice.
206	<i>National Funding, Inc. vs. M & E Restorati on, LLC</i>	Matter will be taken off calendar pursuant to parties' stipulation.

207	<i>National Funding, Inc. vs. Brown and Whaley Trucking LLC</i>	Plaintiff National Funding, Inc.’s motion for summary judgment is GRANTED. Defendants’ evidentiary objections are OVERRULED in their entirety. Declarant has sufficient personal knowledge and/or lays proper foundation for her testimony and the attached documents, including authenticating the electronic signatures and establishing the business records exception to the hearsay rule. (See Civ. Code § 1633.9 [authentication of electronic signature]; <i>see also Ruiz v. Moss Bros. Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 843 [same]; Evid. Code § 1271 [business records exception]; <i>see also</i> Declaration of Sandra Otero ¶¶ 2-5, 11, 18.) Plaintiff has met its initial burden to show defendant Whaley Trucking LLC breached the three loan agreements at issue and defendant Gary Brown II breached the guarantees of those loans. (See <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements of breach of contract]; <i>Gray1 CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486 [elements of breach of guaranty]; <i>see also</i> Plaintiff’s Separate Statement of Undisputed Material Facts 1-35.) Defendants failed to meet their shifted burden to show a triable issue. Plaintiff shall give notice.
208	<i>Bendana vs. Rifi</i>	Before the Court are the unopposed applications of attorneys Aerial I. Henderson and Matthew W. Casey to appear in this matter pro hac vice as counsel for defendants Cynthia Rifi and Lantern Bay Realty, Inc. (collectively, Defendants). Moving counsels have complied with the requirements set forth in California Rules of Court, Rule 9.40. Accordingly, the applications are GRANTED. As for the CMC, the court has reviewed the file and any timely case management statements. (See Cal. Rules of

		Court, rule 3.725.) A 5-day jury trial is set for 9/20/27 at 9:30 a.m. in Dept. C24. All parties are ordered to comply with Local Rule 317 and the department pretrial order at: https://www.occourts.org/system/files/civil/martinezprocedure.pdf. Counsel for Defendants is ordered to give notice of this ruling.
209	<i>Kim Brothers World Wide, Inc. vs. Dingess</i>	The demurrer by defendant Rebecca Dingess to the first amended complaint (FAC) filed by plaintiff Kim Brothers World Wide, Inc. dba The Blue Door Bar (Blue Door) is SUSTAINED, with 14 days leave to amend, as set forth herein. The Court notes initially that while defendant James Kim is listed as a moving party in the instant demurrer, the 3rd and 4th causes of action are not alleged against him. Also, the Court has received Blue Star's dismissal of the 4th cause of action. As a result, the only cause of action at issue in this demurrer is the 3rd cause of action for Intentional Interference with Prospective Economic Advantage against Blue Door. "The elements of a claim of interference with economic advantage and prospective economic advantage are: (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional [or negligent] acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." (<i>Crown Imports, LLC v. Superior Court</i> (2014) 223 Cal.App.4th 1395, 1404, internal quotation marks omitted.) Here, Blue Star has failed to identify the "economic relationship between plaintiff and some third party. Instead, the FAC alleges without detail that "Blue Door

		has identified specific patrons who have ceased patronage following the publications.” (FAC ¶54) Plaintiff fails to cite any authority which would allow it to conceal the known specific identity of persons with whom it had an economic relationship that plaintiff interfered with. Further, plaintiff fails to allege facts showing how the prospective relationship was interfered with. For example, it is not alleged that one of the persons Blue Star has identified has now refused to patronize the Blue Door. Accordingly, the demurrer to the 3rd cause of action for Intentional Interference with Prospective Economic Advantage is SUSTAINED, with 14 days leave to amend. On the Court’s own motion, the Case Management Conference set for 9/14/26 is CONTINUED to 12/14/26 at 8:45 a.m. Defendant shall give notice.
210	<i>Sephora USA, Inc. vs. Tinley</i>	The demurrer of defendant Anna Tinley (Defendant) directed to the complaint of plaintiff Sephora USA, Inc. (Plaintiff) is OVERRULED. Defendant shall file an answer to the complaint by 9/24/26. Defendant’s request for judicial notice is GRANTED as to Exhibits 2 and 4 to the Bhat Declaration. (Evid. Code, § 452(d).) Defendant’s request for judicial notice is DENIED as to Exhibit 3 to the Bhat Declaration. Defendant failed to show this unilaterally drafted and executed Covenant and Release is a proper subject of judicial notice under Evidence Code section 452, subdivision (h). Moreover, Plaintiff disputes the legal effect and proper interpretation of the Covenant and Release. “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 114.)

The complaint alleges an actual controversy under Code of Civil Procedure section 1060. The complaint alleges Defendant filed a demand for arbitration alleging Plaintiff's online product recommendations prior to mid-March 2024 violated the Unruh Act; Defendant continues to use Plaintiff's website and continues to see Plaintiff's product recommendations after the filing of that arbitration demand; any alleged violations that occurred after March 16, 2024 must be adjudicated in court; and Plaintiff disputes Defendant's allegations and disputes that the Unruh Act prohibits it from using "age" or "race" to recommend beauty and personal care products online. (See Complaint ¶¶ 29-38.) The foregoing allegations set forth facts and circumstances showing a declaratory adjudication concerning whether Plaintiff's online product recommendations violate the Unruh Act, is appropriate. The allegations show Defendant continues to access Plaintiff's website and view product recommendations and an ongoing relationship between the parties thus exists.

Defendant cites no authority requiring Plaintiff to plead that Defendant filed a court action based on post-arbitration demand conduct or that Defendant demanded payment for any such conduct.

Defendant's dismissal without prejudice of her petition to compel arbitration does not preclude the finding of an actual controversy between the parties. As Plaintiff points out, Defendant did not dismiss her Unruh Act claims, nor did she admit that Plaintiff's product recommendations do not violate the Unruh Act. She merely dismissed a petition seeking to compel arbitration of the claims arising before March 16, 2024.

Additionally, the Covenant and Release does not support dismissal. As discussed above, Defendant failed to show judicial notice of this document is proper. Even if judicial notice was proper, the Covenant and Release does not render the controversy moot because the document does not resolve the question of whether Plaintiff's product recommendations violate the Unruh Act.

		Furthermore, even if the Covenant and Release mooted the dispute, the court exercises its discretion to hear the case based on the public interest exception to the mootness doctrine. (<i>Environmental Charter High School v. Centinela Valley Union High School Dist.</i> (2004) 122 Cal.App.4th 139, 144.) The Unruh Act “protects against intentional discrimination that is unreasonable, arbitrary, or invidious. This important piece of legislation provides a safeguard against the many real harms that so often accompany discrimination.” (<i>Cohn v. Corinthian Colls., Inc.</i> (2008) 169 Cal.App.4th 523, 526.) The parties do not dispute that millions of consumers are enrolled in Plaintiff’s Beauty Insider Program (see Complaint ¶ 25, Ex. A at p. 3) and that thousands filed claims for arbitration against Plaintiff regarding violations of the Unruh Act (see Bhat Decl., Ex. 4, ¶ 22.) The foregoing shows the dispute involves an issue of broad public interest that is likely to recur. For the same reasons discussed above, the court declines to exercise its discretion to dismiss the action under Code of Civil Procedure section 1061. The 9/14/26 CMC is continued to 12/14/26 at 8:45am. Plaintiff shall give notice.
211	<i>17th Street Optometry, APC vs. Pearson</i>	Before the Court are a demurrer and motion to strike filed by defendant Robert E. Pearson, Successor Trustee under the Maurice A. Enderle Declaration of Trust established February 4, 1988, doing business as EMS Development Company (Defendant) as to the complaint filed by plaintiffs 17th Street Optometry, APC and Alexander Elson, O.D. (collectively, Plaintiffs). The demurer is OVERRULED and the motion to strike is DENIED, as set forth herein. <u>Defendant’s Request for Judicial Notice</u> Defendant requests the court take judicial notice of six items at ROA 12 is DENIED.

As to items 1 and 2, Defendant has failed to establish the relevance of the documents. (*Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063 [only relevant material is subject to judicial notice].)

As to items 3 and 4, the existence of an agreement between two parties is not subject to judicial notice under Evidence Code section 452(h). (*Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App 4th 1137, 1146)

As to the email at item 5, Section 452(h) does not allow for judicial notice of correspondence between the parties.

As to item 6, that category refers to seven exhibits attached to the declaration of Ronald Steinbach. Exhibits A-C, E and G are correspondence; Exhibit D is an unfiled copy of the complaint and Exhibit F is a copy of the “Lease Recognition Agreement” (an agreement between the parties). For the same reasons as discussed above, judicial notice is not appropriate.

Demurrer

Defendant demurs to the entire complaint. Here, the breach of contract cause of action is sufficiently pled. (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1388 [elements]; *See Complaint ¶¶ 16-18; Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 [“plaintiff may plead the legal effect of the contract rather than its precise language.”]) Defendant’s additional arguments that the complaint is barred by a settlement agreement or terms of the lease, neither of which are alleged in the Complaint nor subject to judicial notice, are not proper for demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.)

Accordingly, the demurrer is OVERRULED.

Motion to Strike

	Code of Civil Procedure §437(a) provides that “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” Here, the entirety of Defendant’s arguments rely on evidence which is not alleged in the complaint. Accordingly, the motion to strike is DENIED.
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As part of the motion to strike, Defendant also argues sanctions are warranted under Code of Civil Procedure §128.7. The motion is DENIED because Defendant has failed to comply with the requirements of Section 128.7(c).

Defendant is ordered to file and serve his answer to the complaint by 9/24/26. The court continues the 9/14/26 CMC to 12/14/26 at 8:45am in Dept. C24.

Plaintiff shall give notice.